

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Asencio	Team: Team # 1	CCRB Case #: 200709343	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Friday, 06/29/2007 8:00 PM	Location of Incident: § 87(2)(b)	Precinct: 75	18 Mo. SOL 12/29/2008	EO SOL 12/29/2008	
Date/Time CV Reported Fri, 06/29/2007 10:21 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 06/29/2007 8:05 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Diery Louis	29819	940395	075 PCT
2. SGT Mohammed Karimzada	00786	905598	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Florin Duta	30538	925229	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Mohammed Karimzada	Force: Sergeant Mohammed Karimzada used physical force against § 87(2)(b) § 87(2)(b)	§ 87(2)(b)
B.POM Diery Louis	Abuse: PO Diery Louis threatened § 87(2)(b) with pepper-spray.	§ 87(2)(b)
C.SGT Mohammed Karimzada	Abuse: Sergeant Mohammed Karimzada threatened to arrest § 87(2)(b)	§ 87(2)(b)

Synopsis

§ 87(2)(b) filed this complaint via the call processing system on June 29, 2007. On June 29, 2007, at approximately 8:00pm, Sergeant Mohammed Karimzada and PO Diery Louis from the 75th Precinct arrested § 87(2)(b) § 87(2)(b) at a schoolyard located across § 87(2)(b) in Brooklyn. Once the officers were escorting § 87(2)(b) to their marked vehicle, § 87(2)(b) § 87(2)(b) § 87(2)(b) and her family exited their home and confronted the officers.

Once § 87(2)(b) realized his brother was placed under arrest, he began to yell and scream at the officers. At which point, PO Louis told § 87(2)(b) “Back off. If you step next to me, I will end up hitting you. If you talk, I will arrest you.” However, § 87(2)(b) did not comply and the officers approached him to place him under arrest. § 87(2)(b) who saw § 87(2)(b) yelling at the officers, approached him, Sergeant Karimzada, and PO Louis. § 87(2)(b) placed her hands on § 87(2)(b) s shoulders. At which point, Sergeant Karimzada gave no instructions, made a fist, and used his forearm to push her. Once on the ground, Sergeant Karimzada allegedly kicked § 87(2)(b) on her stomach (**Allegation A**). § 87(2)(b) got up off the ground and approached the three men again.

§ 87(2)(b) s mother, § 87(2)(b) attempted to grab her. However, PO Louis threatened § 87(2)(b) with pepper-spray (**Allegation B**). § 87(2)(b) s family members grabbed § 87(2)(b) and took her across the street. § 87(2)(b) followed soon after. § 87(2)(b) was then placed in handcuffs and transported to the 75th Precinct. § 87(2)(b), § 87(2)(b), and § 87(2)(b) also went to the stationhouse since § 87(2)(b) wanted to file a complaint against Sergeant Karimzada. Once they were at the precinct, Sergeant Karimzada and PO Louis instructed § 87(2)(b) that she had to wait to file the complaint. As they were waiting, § 87(2)(b) arrived at the precinct. Once § 87(2)(b) told the officers, “You can’t kick my sister,” PO Louis instructed him to leave the stationhouse. When § 87(2)(b) told the officer, “What are you going to do, arrest me?” Sergeant Karimzada allegedly told § 87(2)(b) that he would be arrested for disorderly conduct if he did not comply (**Allegation C**).

§ 87(2)(g)

Summary of Complaint

Statements to the CCRB

§ 87(2)(b) was interviewed in person at the CCRB on July 20, 2007. § 87(2)(g) § 87(2)(b) is a § 87(2)(b) student at § 87(2)(b). At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Brooklyn. She provided the following statement:

On June 29, 2007, at approximately 8:00pm, § 87(2)(b) was upstairs in her home when “§ 87(2)(b) yelled, “Your brother is getting arrested.” § 87(2)(b) proceeded to run outside her home along with her sister, § 87(2)(b) § 87(2)(b), § 87(2)(b) s boyfriend, § 87(2)(b) and “§ 87(2)(b). Once she exited her residence, she saw § 87(2)(b) s brother, § 87(2)(b) § 87(2)(b) in handcuffs being escorted to a police vehicle by a uniformed officer, later identified as Sergeant Mohammed Karimzada from the 75th Precinct. § 87(2)(b) s mother, § 87(2)(b) was across the street by the schoolyard talking to Sergeant Karimzada and PO Louis. In addition, a crowd of approximately 30 individuals were outside watching the police activity. The crowd was yelling at the officers saying, “You are arresting him for no reason. He was not riding it.”

Once § 87(2)(b) realized that § 87(2)(b) was arrested, he began to yell at Sergeant Karimzada and PO Louis from the school sidewalk. By this time, § 87(2)(b) was already placed inside the patrol car and the officers were now standing next to the car approximately ten feet away from § 87(2)(b). At that point, § 87(2)(b) yelled loudly and cursed at the officers saying, “Why are you arresting my brother? He did not do

anything.” PO Louis said, “You keep yelling and we are going to arrest you.” PO Louis warned § 87(2)(b) approximately five times, but § 87(2)(b) continued to yell at them.

Sergeant Karimzada and PO Louis approached § 87(2)(b) without giving him any further instructions. Once they reached § 87(2)(b) PO Louis grabbed § 87(2)(b)'s upper arm and shoulder, while Sergeant Karimzada grabbed the other arm and shoulder. § 87(2)(b) approached the three men and placed her hands on the front of § 87(2)(b)'s shoulders as an attempt to “calm him down” since § 87(2)(b) was still yelling at the police officers. § 87(2)(b) stated that she thought § 87(2)(b) tried to pull § 87(2)(b) away from the officers by pushing him back toward the school gate.) Sergeant Karimzada did not give § 87(2)(b) any instructions, but made a fist and used his forearm to push her out of the way. Sergeant Karimzada's forearm made contact with § 87(2)(b) shoulder and it caused her to fall to the ground.¹ § 87(2)(b) did not recall how § 87(2)(b) landed on the ground.) Sergeant Karimzada then immediately kicked § 87(2)(b) in the stomach by the rib cage area with the front of his foot. § 87(2)(b) saw § 87(2)(b) injury later that evening at the precinct. She described it as a dark red scratch approximately four inches long.) At that moment, § 87(2)(b) began to yell like a “maniac” at Sergeant Karimzada saying, “You can't touch my daughter like that. You kicked my daughter. You weren't suppose to do that.”

Even though Sergeant Karimzada kicked § 87(2)(b) in the stomach, she got off the ground and went to grab § 87(2)(b) a second time by raising both her hands to grab § 87(2)(b)'s t-shirt. § 87(2)(b) who was standing right next to the officers, tried to grab § 87(2)(b). § 87(2)(b) also went to grab her and pull her away, but was unable to since PO Louis threatened her with pepper-spray. PO Louis only told § 87(2)(b) “Step back or else I spray it.” § 87(2)(b) stated that PO Louis told her mother to calm down prior to his instruction, but she did not comply.) Unaware of Sergeant Karimzada's actions during this time, § 87(2)(b)'s family members took her across the street and § 87(2)(b) followed soon after and began to cry. PO Louis gave no further instructions and did not use the pepper-spray. § 87(2)(b) stated that the crowd of approximately 30 people did not approach the officers at any time. She alleged that she, § 87(2)(b), § 87(2)(b), and § 87(2)(b) were the only ones within reaching distance of the officers.)

Just then, either Sergeant Karimzada or PO Louis grabbed § 87(2)(b) and pushed his chest once very hard against the schoolyard gate. Sergeant Karimzada handcuffed § 87(2)(b) and he did not make any movements or say anything to the officers. § 87(2)(b) mentioned that § 87(2)(b)'s shirt was ripped in the process although she did not see which officer ripped the shirt and she knew that the shirt was not ripped before the officers approached him.)

Once § 87(2)(b) was handcuffed, approximately four patrol vehicles arrived at the scene. These officers exited the vehicles and approached Sergeant Karimzada and PO Louis. They gave no instructions to the crowd and left approximately five minutes after their arrival. § 87(2)(b) believed Sergeant Karimzada called for assistance to pick up the dirt bike because it did not fit into their patrol car.) At that point, § 87(2)(b) instructed her to get the name and badge number of Sergeant Karimzada. § 87(2)(b) told her friend, § 87(2)(b) to get the information. “§ 87(2)(b) ran up to Sergeant Karimzada and asked him for his name while he was standing outside speaking to the additional officers who arrived at the scene. “§ 87(2)(b) told § 87(2)(b) that his name was “Karimzada.”²

Once the incident was over and all the officers left the location, § 87(2)(b), § 87(2)(b), and § 87(2)(b) went to the precinct to speak to Sergeant Karimzada and file a complaint against him. § 87(2)(b) was yelling at Sergeant Karimzada and PO Louis telling them that she wanted to file a complaint. Sergeant Karimzada told her that she was going to have to wait. § 87(2)(b) then asked the sergeant if she could speak to an officer in a higher position. Sergeant Karimzada never returned. Approximately ten minutes after their arrival at the precinct, § 87(2)(b) arrived at the stationhouse after his father told him where they went. § 87(2)(b) did not observe the incident.)

¹ In her July 6, 2007 phone statement, § 87(2)(b) stated that Sergeant Karimzada threw § 87(2)(b) to the ground.

² In her July 6, 2007 phone statement, § 87(2)(b) stated that § 87(2)(b) identified Sergeant Karimzada by his nameplate.

Sergeant Karimzada and PO Louis exited the office area to speak to § 87(2)(b) and § 87(2)(b). § 87(2)(b)'s mother who had just arrived at the precinct. As the officers were speaking to § 87(2)(b), § 87(2)(b) tried to speak to the officers. Sergeant Karimzada and PO Louis told § 87(2)(b) and § 87(2)(b) that they could have been arrested earlier at the scene for intervening with a police procedure. § 87(2)(b) interrupted and told Sergeant Karimzada and PO Louis, "You can't kick my sister." PO Louis told § 87(2)(b) to step outside, after § 87(2)(b) told the officers, "What are you going to do? Arrest me?" Both officers informed § 87(2)(b) that he was going to be placed under arrest for disorderly conduct if he did not comply. § 87(2)(b) complied even though his demeanor was calm and he was not yelling at the officers. Sergeant Karimzada and PO Louis told § 87(2)(b), § 87(2)(b), § 87(2)(b), and herself approximately seven times to leave the precinct. Approximately one hour after their arrival, they left the precinct without filing a complaint. The officers did not give them any paperwork or phone numbers to call to file a complaint.

Results of Investigation

Victim Statements

§ 87(2)(b) was interviewed at the CCRB on July 20, 2007. § 87(2)(b) is a § 87(2)(b) Hispanic female. At the time of this interview, § 87(2)(b) lived at § 87(2)(b) in Brooklyn. She provided the following statement to the CCRB:

On June 29, 2007, § 87(2)(b) her boyfriend, § 87(2)(b) and her cousin "§ 87(2)(b) were upstairs in her home watching television. While the group was watching television, § 87(2)(b), § 87(2)(b)'s mother, called her to come downstairs. The whole group including § 87(2)(b)'s father, § 87(2)(b) and sister, § 87(2)(b) proceeded to exit the residence.

Once outside the house, § 87(2)(b) noticed two male uniformed police officers, later identified as Sergeant Mohammed Karimzada and PO Diery Louis from the 75th Precinct, speaking to her cousin, § 87(2)(b) and § 87(2)(b). § 87(2)(b) and § 87(2)(b) asked why § 87(2)(b)'s brother, § 87(2)(b), was placed under arrest. During this time, § 87(2)(b) § 87(2)(b) was inside the patrol vehicle. Once § 87(2)(b) realized that § 87(2)(b) was under arrest, he approached Sergeant Karimzada and PO Louis and asked them, "Why are you arresting my brother?" § 87(2)(b) told the officers that he was the one driving the dirt bike, that the dirt bike belonged to him, and that they should place him under arrest. PO Louis instructed § 87(2)(b) to, "Back off. If you step next to me, I will end up hitting you. If you talk I will arrest you." § 87(2)(b) complied and stood on the sidewalk, but continued to argue with PO Louis without making any movements toward the officers. § 87(2)(b) told the officer, "Don't arrest my brother. Cops are always getting tough for no reason." The officers kept telling § 87(2)(b) "Keep talking and you are going to get arrested." § 87(2)(b) told the officers that he is not going to get arrested and stated, "Oh, arrest me if I keep talking." PO Louis walked toward § 87(2)(b) and grabbed the back of his shirt, pushed him up against a gate, and handcuffed him.

Once handcuffed, the officer turned him around to face him. Once he was face to face with PO Louis, § 87(2)(b) began to move his arms. At that moment, § 87(2)(b) approached § 87(2)(b) and the officers. While PO Louis held § 87(2)(b) by the arms, she grabbed the front of § 87(2)(b)'s shirt and held it for approximately five seconds before Sergeant Karimzada grabbed her and pushed her by touching her shoulders. As a result of the push, § 87(2)(b) fell into a sitting position on the ground. Approximately ten seconds after she hit the ground and went to get up, Sergeant Karimzada lifted his foot and kicked her on the right side of her stomach, underneath her rib cage without any instructions. The kick resulted in two small scratches. Soon after she was kicked, Sergeant Karimzada told § 87(2)(b) that he "had to kick her."

At that point, § 87(2)(b) jumped in to try to pull § 87(2)(b) away from the officers. She told the officers, "Don't hit my daughter." PO Louis threatened § 87(2)(b) with pepper-spray and told her to "Stand back." As soon as that happened, the crowd started to approach the officers. PO Louis told the crowd, "Back off or I am going to use the pepper-spray." The crowd complied and more police officers arrived at the location. However, none of these officers exited their patrol vehicles.

§ 87(2)(b) got up and walked toward the crowd of approximately five people. As she was walking back, Sergeant Karimzada pushed her a second time on the front of her shoulders. The push did not cause her to fall but she complied and stood back. Soon after, PO Louis and Sergeant Karimzada left the scene with § 87(2)(b) and § 87(2)(b) in the police vehicle.

As soon as the police officers left the scene, she, § 87(2)(b) and § 87(2)(b) went to the 75th Precinct since § 87(2)(b) saw the scratch on her stomach. They went to the precinct to get Sergeant Karimzada's name and to speak to him. When PO Louis came out of the office area, § 87(2)(b) asked for Sergeant Karimzada's name. PO Louis laughed, walked back inside the office, and did not provide her with the sergeant's name. The three women waited in the precinct for approximately one hour before they left.

§ 87(2)(b)
Investigators Grodzicki and Lawrence interviewed § 87(2)(b) in person at the CCRB on July 20, 2007. § 87(2)(b) is a § 87(2)(b) Hispanic female. On October 4, 2007, the undersigned contacted § 87(2)(b) for further information. At the time of the interview, § 87(2)(b) resided at § 87(2)(b) in Brooklyn. She provided the following statement to the CCRB:

On June 29, 2007, § 87(2)(b) and approximately ten other individuals including her brother were sitting outside on the front steps of her home while her daughter, § 87(2)(b) § 87(2)(b) and her boyfriend, § 87(2)(b) were inside the residence. As she was outside, § 87(2)(b) saw § 87(2)(b)'s brother, § 87(2)(b) § 87(2)(b) playing handball across the street in the schoolyard with other kids.

Sergeant Karimzada and PO Louis arrived at the location in a marked vehicle. Once the car was parked, the officers entered the schoolyard. § 87(2)(b) § 87(2)(b) saw the officers approaching the motorcycle and proceeded to run to the bike to try to hide it. The officers instructed § 87(2)(b) "Not to touch it." § 87(2)(b) complied and he was immediately placed in handcuffs. The officers began to search and remove items such as his wallet and money from his pockets. § 87(2)(b) did not recall which officer searched § 87(2)(b) § 87(2)(b).

Once the search was over, they proceeded to take § 87(2)(b) out of the schoolyard and placed him in the police vehicle. At that moment, § 87(2)(b) and § 87(2)(b) exited the house and realized that § 87(2)(b) § 87(2)(b) was placed under arrest. § 87(2)(b) began to yell, "Why are you taking him? He didn't do anything?" Sergeant Karimzada ordered § 87(2)(b) to "Shut up or I will arrest you too." § 87(2)(b) became "hysterical" and began to move his body around saying, "Take me. You are going to do nothing. You are not going to arrest me." § 87(2)(b) stated that § 87(2)(b) was approximately two feet away from the officers when he made those statements while § 87(2)(b) stood next to him.)

Sergeant Karimzada grabbed the front of § 87(2)(b)'s t-shirt and pushed him against the schoolyard gate. § 87(2)(b) made no physical movements toward the officers; however, § 87(2)(b) jumped toward § 87(2)(b) and tried to grab his arm. She yelled, "You are not taking him." Sergeant Karimzada then swung his arm and pushed § 87(2)(b) on her upper chest. As a result, § 87(2)(b) landed on her left shoulder. The sergeant then kicked her on the right side of her stomach. § 87(2)(b) stated that § 87(2)(b) received scratches as a result of the kick.) At that moment, § 87(2)(b) "went crazy" saying, "Why did you hit my daughter? What are you doing?" § 87(2)(b) got up and approached § 87(2)(b) a second time. When § 87(2)(b) went toward § 87(2)(b) again, § 87(2)(b) tried to pull her away from him as she was arguing with the officers. When § 87(2)(b) got a hold of § 87(2)(b) PO Louis held pepper-spray approximately one foot away from her face. At that moment, family members grabbed § 87(2)(b) and § 87(2)(b) and pulled them away from the scene. Other officers arrived at the location shortly afterwards.

When the officers left the scene with § 87(2)(b) and § 87(2)(b) § 87(2)(b) she, § 87(2)(b) and § 87(2)(b) went to the 75th Precinct to file a complaint. § 87(2)(b) told Sergeant Karimzada that she wanted to file a complaint against him. However, § 87(2)(b) told the sergeant that she did not want to speak to him, because she wanted to speak to someone in a higher position. § 87(2)(b) told Sergeant Karimzada, "How could you be a sergeant if you are going to hit a § 87(2)(b) girl?" The sergeant told § 87(2)(b) "Your daughter tried to hold her boyfriend, which she wasn't suppose to do." The sergeant informed § 87(2)(b)

that he will speak to her when she calms down. At that moment, PO Louis approached § 87(2)(b) and she told him that she wanted to speak to someone in a higher position. PO Louis told her that she would have to wait. Every time, Sergeant Karimzada and PO Louis passed by her area, she would ask to file a complaint. § 87(2)(b) stated that she asked both officers approximately three times each and that she would have to wait.)

Once there, § 87(2)(b) asked her what had occurred. Sergeant Karimzada said, "Everyone has to get out." § 87(2)(b) wanted to stay with her in the precinct. § 87(2)(b) then tried to walk into the precinct and said, "What do you mean I can't walk in? That is my mother." § 87(2)(b) started arguing with the police. § 87(2)(b) stated that § 87(2)(b) was not screaming or using any profanity, but Sergeant Karimzada told him to, "Leave the precinct or I will arrest you." § 87(2)(b) and § 87(2)(b), and § 87(2)(b) then left the precinct without filing the complaint.

§ 87(2)(b)

On October 4, 2007, § 87(2)(b) provided a phone statement to the CCRB. He mentioned the following:

On June 29, 2007, § 87(2)(b) arrived home to find his stepfather, § 87(2)(b) outside his residence. § 87(2)(b) told § 87(2)(b) what had happened with his sister, § 87(2)(b) and the officer. He also told § 87(2)(b) to go down to the precinct to be with his mother, § 87(2)(b) and sister and make sure everything was all right. Once at the precinct, he approached § 87(2)(b) and asked her what happened. § 87(2)(b) was "visibly upset" but "kind of calm." § 87(2)(b) did not remember what § 87(2)(b) told him about the incident but remembered that after he got the story he became upset and spoke with a raised voice. Sergeant Karimzada instructed § 87(2)(b) to "Wait outside." § 87(2)(b) asked the sergeant why he had to wait outside if he was there to see his mother. The sergeant again instructed § 87(2)(b) to exit the precinct. § 87(2)(b) complied and after he calmed down, he re-entered the precinct and stood in the lobby.

As soon as the sergeant saw § 87(2)(b) he was instructed again to go back outside the precinct. § 87(2)(b) again questioned the sergeant as to why he had to leave the precinct. The sergeant then told § 87(2)(b) that if he does not leave the precinct he would be placed under arrest. However, § 87(2)(b) continued to question the sergeant, asking him why he was going to place him under arrest when he only wanted to be with his mother. § 87(2)(b) stated that the officer told him to "Step outside" approximately four times before he stated that he would be placed under arrest if he did not comply. After the sergeant told § 87(2)(b) that he could be arrested, he told the undersigned that he did not recall what happened next. He stated that every time he entered the precinct, he would speak to his mother before Sergeant Karimzada would see him and tell him to leave.

While this took place, § 87(2)(b) kept asking to speak to a lieutenant about what occurred with § 87(2)(b) and the officer, but an officer kept "brushing her off." § 87(2)(b) stated that his mother spoke to different officers that night, but he did not recall any of them specifically or what they were talking about.) § 87(2)(b) stated that his mother told him that she wanted to file a complaint. He explained to his mother that she had to speak to a lieutenant. However, since § 87(2)(b) was in and out of the precinct, he did not witness his mother tell an officer that she wanted to file a complaint. Shortly thereafter, § 87(2)(b) and his sister left the precinct since no one wanted to help them.

Attempts to Contact Civilians

Since § 87(2)(b) was named as a victim and witness to the June 29, 2007 incident, the undersigned attempted to get in contact with him. On July 31 and August 2, 2007, the undersigned called § 87(2)(b) at his cell phone and home phone numbers and left messages for him to contact the undersigned. On August 6, 2007, supervision ran a Lexis Nexis search for the § 87(2)(b) household and a alternate phone numbers was found for § 87(2)(b). On August 10, 13, 24, September 4, 5, 12, and 26, 2007, the undersigned called § 87(2)(b) and left him messages. On August 2, September 10, 2007, and January 15, 2008, the undersigned mailed § 87(2)(b) "please call" letters. As of this date, § 87(2)(b) has not contacted the undersigned by phone or mail.

Officer Statements

PO Diery Louis

On June 29, 2007, PO Diery Louis from the 75th Precinct was dressed in uniform, with Sergeant Mohammed Karimzada. He worked a 5:30pm to 2:05am tour. PO Louis and Sergeant Karimzada were assigned to Tracer Auto in a marked patrol car number (2431). PO Louis was interviewed at the CCRB on October 31, 2007 § 87(2)(g)

OLBS Worksheet: PO Diery Louis

On June 29, 2007, PO Louis wrote, “At time, place, location, defendant was observed operating a motorcycle on a public highway with plates. When arresting officer attempted to pull defendant over, defendant sped away. Defendant then jumped on a sidewalk and nearly struck a little girl on the sidewalk. Defendant then proceeded to evade a mark RMP. Defendant was then arrested a few minutes later in a school ground adjacent to § 87(2)(b) still in possession of the bike. Defendant attempted to start the bike to run away from police again.”

CCRB Statement: PO Diery Louis

On June 29, 2007, at approximately 8:00pm, PO Louis and Sergeant Karimzada were driving northbound on § 87(2)(b) in Brooklyn when he observed § 87(2)(b) § 87(2)(b) driving his motorcycle without a license plate and inspection. The officers decided to pull the motorcycle over since it was “in the middle of the street.” Once the officers had made their presence known, § 87(2)(b) rode northbound on his motorcycle and ran a red light. § 87(2)(b) continued flee from police by going down a one-way street. When PO Louis and Sergeant Karimzada followed him, § 87(2)(b) jumped on a sidewalk nearly killing a young girl who was jumping rope. § 87(2)(b) continued to drive on the sidewalk. As the driver of the police vehicle, PO Louis decided to stop following § 87(2)(b) for the public’s safety.

PO Louis and Sergeant Karimzada canvassed the area for § 87(2)(b) and observed him at a schoolyard sitting on his motorcycle. Once PO Louis and Sergeant Karimzada saw § 87(2)(b) they told him, “Police. Don’t move.” When § 87(2)(b) saw the officers he attempted to kick start the motorcycle. However, he ran from the officers once he realized that he did not have enough time to start the motorcycle. PO Louis and Sergeant Karimzada proceeded to chase § 87(2)(b) on foot. PO Louis secured the motorcycle while Sergeant Karimzada apprehended § 87(2)(b) without any resistance. Sergeant Karimzada then placed § 87(2)(b) in handcuffs. During this time, PO Louis observed § 87(2)(b) § 87(2)(b)’s brother, § 87(2)(b) § 87(2)(b) behind him.

As soon as they exited the schoolyard, they were confronted by a small crowd of people along with § 87(2)(b) § 87(2)(b). Sergeant Karimzada had a hold of § 87(2)(b) while PO Louis walked behind them. The crowd surrounded the officers and § 87(2)(b). Once they were surrounded, the crowd began to curse at them saying, “Why the fuck are you messing with us? They were in a schoolyard playing.” The crowd of at least 20 individuals were preventing them from reaching their police vehicle.

Sergeant Karimzada tried to explain to the crowd what had happened before they arrived at the scene. The individuals from the crowd did not listen to the sergeant and they continued to approach them and § 87(2)(b) § 87(2)(b). Sergeant Karimzada instructed the crowd twice to, “Get out of the way. Move back.” However, the crowd did not comply and kept approaching them. At that point, § 87(2)(b) § 87(2)(b) who was now standing with the crowd on the sidewalk by their police vehicle, told the officers to get away from his brother. § 87(2)(b) § 87(2)(b) approached Sergeant Karimzada and tried to move § 87(2)(b) § 87(2)(b) away from the sergeant by placing one hand on his left arm and one hand on his brother’s hand. Once § 87(2)(b) § 87(2)(b) approached the sergeant, PO Louis approached § 87(2)(b) § 87(2)(b) to get him away from Sergeant Karimzada. At that point, PO Louis had to place § 87(2)(b) § 87(2)(b) in handcuffs.

§ 87(2)(b) § 87(2)(b) walked from her residence across the street toward Sergeant Karimzada. She was screaming at the sergeant saying, “Fuckin’ cops. What the fuck are you doing with my fuckin’ boyfriend? Get away from him.” During this time, § 87(2)(b) § 87(2)(b) was standing by the police vehicle in Sergeant Karimzada’s custody while PO Louis had custody of § 87(2)(b) § 87(2)(b). Sergeant Karimzada instructed § 87(2)(b) § 87(2)(b) multiple times to move away. The sergeant also informed § 87(2)(b) § 87(2)(b) that if she did not comply she would be

placed under arrest for obstructing governmental administration. (PO Louis did not recall if Sergeant Karimzada had any physical contact with § 87(2)(b). Later in the interview, PO Louis stated that Sergeant Karimzada did not punch or kick any of the females present at the scene. He also stated that he did not observe § 87(2)(b) on the ground nor did he have any physical contact with any other civilians at the scene.)

§ 87(2)(b) § 87(2)(b) kept struggling with PO Louis as he was being placed inside their police vehicle. § 87(2)(b) and § 87(2)(b) were struggling to free § 87(2)(b) § 87(2)(b) by attempting to push Sergeant Karimzada away from him. Sergeant Karimzada instructed the women to, “Back up and back off,” but they did not comply.

After § 87(2)(b) § 87(2)(b) was finally placed inside the police vehicle, PO Louis went back to assist the sergeant. PO Louis placed himself between the sergeant and the crowd. At that point, PO Louis heard Sergeant Karimzada call for assistance. During this time, § 87(2)(b) § 87(2)(b) was still not inside the police vehicle because of “all the people trying to set him free.” In addition, PO Louis stated that it was struggle to get him inside the RMP. At that point, PO Louis felt it was an unsafe situation for him and Sergeant Karimzada. PO Louis proceeded to take out his pepper-spray and informed the crowd, including § 87(2)(b) and § 87(2)(b) that if they did not move back he was going to use it against them. The crowd did not comply and kept approaching them. However, he did not discharge the spray into the crowd. In addition, PO Louis stated that he had no physical contact with § 87(2)(b) or any other civilian besides § 87(2)(b) § 87(2)(b) because he took out his pepper-spray. PO Louis stated that he only threatened to use pepper-spray so that the crowd would comply.

Additional units arrived at the scene and these officers helped to push the crowd back away from PO Louis and Sergeant Karimzada. (When asked if an officer pushed § 87(2)(b) and § 87(2)(b) away from him and Sergeant Karimzada, PO Louis stated that “he suspects so.” Nonetheless, the officers finally managed to place § 87(2)(b) § 87(2)(b) inside their patrol car. The officers then called “Central” and informed them that they had two under arrest at the scene.

At the precinct, PO Louis observed § 87(2)(b), § 87(2)(b) and § 87(2)(b)’s mother, § 87(2)(b) and a group of seven individuals. The seven individuals were loud, obnoxious, and disorderly. The group were cursing inside the stationhouse saying such things as, “This fuckin’ cop thing. Free § 87(2)(b) Free § 87(2)(b).” The security officer at the precinct instructed these individuals multiple times to leave the precinct since he was processing the arrest. During this time, Sergeant Karimzada was at the front desk writing the arrest into the book. When asked if he or any other officer told the crowd to leave or they would be arrested, PO Louis stated that he did not know. However, he mentioned that these individuals could have been arrested for disorderly conduct, obstructing governmental administration, and obstructing a pedestrian cross walk. PO Louis stated that one specific individual could have been arrested for criminal procession of marijuana since he observed the individual with a marijuana joint behind his ear.

Nonetheless, § 87(2)(b) approached PO Louis and told him that Sergeant Karimzada pushed § 87(2)(b). PO Louis informed her that § 87(2)(b) could have been placed under arrest for obstructing governmental administration because she was attempting to stop an officer from effecting an arrest. § 87(2)(b) informed PO Louis that she wanted him to file a report. PO Louis explained to § 87(2)(b) that he is just an officer and if she wanted to file a complaint that she would have to speak to the desk officer. PO Louis also overheard § 87(2)(b) cursing at Sergeant Karimzada saying, “You fuckin’ push my daughter. I will fuckin’ kill you.” (Sergeant Karimzada did not arrest § 87(2)(b) for that statement.)

When asked if he spoke to any male relatives of § 87(2)(b) PO Louis stated that he did not speak to any male relative nor was he sure if Sergeant Karimzada spoke to any male relative of § 87(2)(b). PO Louis stated that neither he nor Sergeant Karimzada instructed § 87(2)(b) her daughters, or son to leave the precinct. In addition, PO Louis stated that he did not give § 87(2)(b) any phone numbers or paperwork to file a complaint because “as far as they were concerned they had no business with § 87(2)(b).” § 87(2)(b) was not physically harmed by the officers nor was she arrested by them.

Sergeant Mohammed Karimzada

On June 29, 2007, Sergeant Mohammed Karimzada from the 75th Precinct was dressed in uniform, with PO Diery Louis. He worked a 5:15 pm to 2:12am tour. Sergeant Karimzada and PO Louis were assigned to Tracer Auto in a marked patrol car number (1820). Sergeant Karimzada was interviewed at the CCRB on November 14, 2007. § 87(2)(g)

Memo Book: Sergeant Mohammed Karimzada

On June 29, 2007, at 7:50pm, Sergeant Karimzada noted in his memo book that he observed a Hispanic male riding a dirtbike on its rear wheel eastbound on § 87(2)(b) and § 87(2)(b). The male fled northbound on § 87(2)(b) on the east-side of the sidewalk. He observed a near collision with a child at § 87(2)(b). The motorcycle spun around and went back southbound toward § 87(2)(b) on the sidewalk. He canvassed the area and observed the defendant on his motorbike at a school playground at § 87(2)(b) and § 87(2)(b). He attempted to flee with the bike. While attempting to arrest another § 87(2)(b) girlfriend grabbed him by the shirt and shouted to police, “You cannot take him. Go fuck off.” I then push her away from defendant to allow arresting officer to effect an arrest. The defendant’s girlfriend refused and was pushed again. The girlfriend ripped the defendant’s t-shirt.

At 20:02, Sergeant Karimzada wrote, “Called for “85” at said location, one unit for crowd control. At 20:05, he noted, “two under.” At 20:10, Sergeant Karimzada wrote, “62-A” (administrative) mother of girlfriend came to stationhouse. Explained thoroughly that by obstructing police from their lawful duties minimal force can be used and can escalate in force until the goal is achieved. Mother disagreed with department policy.

CCRB Statement: Sergeant Mohammed Karimzada

As Sergeant Karimzada and PO Louis were escorting § 87(2)(b) and the motorcycle outside the school playground, they observed § 87(2)(b) quickly approaching them. § 87(2)(b) proceeded to curse and shout at them saying, “You cannot take him. You are not going to take the bike.” (Sergeant Karimzada stated that § 87(2)(b) placed his hands on his brother and on them when they were placing § 87(2)(b) inside the patrol car.)

At that point, Sergeant Karimzada and PO Louis informed § 87(2)(b) that § 87(2)(b) is under arrest. Sergeant Karimzada ordered § 87(2)(b) numerous times to, “Back off. Get away from us. You are preventing us from doing our duties.” However, § 87(2)(b) did not comply and continued to curse and shout at them. Because of the commotion § 87(2)(b) was creating, he was causing a “scene.” During this time, § 87(2)(b) and § 87(2)(b) whole family came out of the house and formed a large crowd. (Sergeant Karimzada stated at least 50 people had gathered at the location.) Since he and PO Louis were outnumbered, Sergeant Karimzada could not arrest § 87(2)(b) at that moment. When Sergeant Karimzada and PO Louis were finally able to place § 87(2)(b) inside the vehicle, they made sure that they were close enough to the vehicle so that no other individual could open the car door to take him outside the car.

Once the crowd had gathered and surrounded them, the individuals began to shout and curse at them. At this point, Sergeant Karimzada and PO Louis were standing on the sidewalk by the entrance of the playground. For that reason, Sergeant Karimzada called for “back up” for crowd control and instructed the crowd to, “Back off.”

When Sergeant Karimzada and PO Louis decided to place § 87(2)(b) under arrest § 87(2)(b) § 87(2)(b), § 87(2)(b) approached and grabbed § 87(2)(b) by his t-shirt. § 87(2)(b) then pulled § 87(2)(b) away from the officers as they were attempting to place him inside the police vehicle. As § 87(2)(b) was pulling on his shirt she told the officers, “You cannot take him. Fuck off.” Sergeant Karimzada immediately instructed § 87(2)(b) to, “Back off. He is under arrest. You got to move out of the way.” § 87(2)(b) told Sergeant Karimzada and PO Louis, “You are not going to take him.” During this time, both officers and § 87(2)(b) were pulling on § 87(2)(b). § 87(2)(b) was also pushing as the officers and § 87(2)(b) were struggling over him. During this struggle § 87(2)(b) pushed § 87(2)(b) with his body. The push caused § 87(2)(b) to fall. § 87(2)(b) was not cooperating with their instructions and § 87(2)(b) was also pulling on him as they were attempting to place him in

handcuffs. Later in the interview, Sergeant Karimzada stated that as he attempted to separate § 87(2)(b) and § 87(2)(b) she might have been pushed by him or § 87(2)(b) since she was standing in the middle. Sergeant Karimzada also stated later in the interview that he did not observe if § 87(2)(b) fell to the ground or had appeared to have fallen or pushed to the ground by any officers at the scene.

Approximately five minutes after he called for assistance, additional units arrived at the location. Once these officers arrived, they assisted Sergeant Karimzada and PO Louis with crowd control. Sergeant Karimzada believed that the other officers also assisted in arresting § 87(2)(b). When these units arrived at the location, Sergeant Karimzada and PO Louis “felt safe enough for our safety” that they could approach § 87(2)(b) and arrest him since he was still not in handcuffs at that time. (Sergeant Karimzada stated that neither he, PO Louis, nor the other responding officers kicked § 87(2)(b) nor did they ever have give any “physical blows against her” at any time.) After Sergeant Karimzada had physical contact with § 87(2)(b) the officers proceeded to place § 87(2)(b) inside the police vehicle and § 87(2)(b) continued to curse, shout, and yell.

When § 87(2)(b) arrived at the precinct, Sergeant Karimzada had to thoroughly explain to her that § 87(2)(b) could have been arrested for obstructing governmental administration. He explained that since § 87(2)(b) obstructed the police from performing their lawful duties that minimal force could be used and that the force could escalate in order to achieve their goal. Sergeant Karimzada told § 87(2)(b) that he understood that § 87(2)(b) might have been emotional when she observed that § 87(2)(b) was being arrested. However, the sergeant explained that § 87(2)(b) could not prevent the police from effecting an arrest. Sergeant Karimzada further explained that since § 87(2)(b) was trying to defend § 87(2)(b) from the arrest by trying to set him free she could have been arrested as well. However, the officers decided not to arrest her. Sergeant Karimzada informed § 87(2)(b) to tell § 87(2)(b) for the future, that if she sees the police making an arrest, they represent the law and they are in charge. Sergeant Karimzada explained to § 87(2)(b) that her daughter’s actions at the scene were illegal. (Sergeant Karimzada stated that he did not recall if any other officers interacted with § 87(2)(b) besides him at the precinct.)

§ 87(2)(b) informed Sergeant Karimzada that she disagreed with their policy. Sergeant Karimzada told § 87(2)(b) that she could not disagree with the policy. He further explained that he did not issue the policy but it is the law of The City of New York. During this time, § 87(2)(b) was not cooperative with the sergeant. Sergeant Karimzada also stated that neither he nor PO Louis instructed § 87(2)(b) or any other relative of § 87(2)(b) to leave the precinct. Sergeant Karimzada stated that he wanted § 87(2)(b) to thoroughly understand the situation. In addition, Sergeant Karimzada stated that he did not recall meeting an individual by the name of § 87(2)(b). When asked if he or any other officer told any relative of § 87(2)(b) that they could be placed under arrest for any reason, Sergeant Karimzada stated “not that I know of.”

PO Florin Duta

On June 29, 2007, PO Florin Duta from the 75th Precinct was dressed in uniform, with PO Robert Murnane. He worked a 3:00pm to 11:35pm tour. PO Duta and PO Murnane were assigned to Sector D in a marked patrol car. PO Duta was interviewed at the CCRB on February 1, 2008.

Memo Book: PO Florin Duta

On June 29, 2007, at 20:01, PO Duta wrote in his memo book “Unnecessary at § 87(2)(b)

CCRB Statement: PO Florin Duta

On June 29, 2007, PO Duta and PO Murnane responded to a radio call placed by another officer who needed assistance for crowd control at § 87(2)(b) in Brooklyn. Approximately two minutes later, they arrived at the scene and were the third or fourth unit to respond at the location. Once there, PO Duta observed a crowd of approximately thirty people on the street screaming, yelling, and cursing at the officers at the location. The crowd yelled, “Leave him alone” as they stood approximately two feet away from the officers. PO Duta did not recall which officers the crowd was surrounding.

PO Duta observed the officers who were surrounded by the crowd of individuals with a person who he assumed was driver of the dirt bike. Since he was busy instructing the crowd to move back, PO Duta did not know what the officers were doing with that individual or if the individual was a male or female or if he or she was already placed in handcuffs. As PO Duta instructed the crowd to disperse he did not hear any officer tell any civilians that they could be placed under arrest if they did not follow their commands.

PO Duta and the other officers instructed the crowd to, “Step back.” Most individuals from the crowd complied with their instructions. (PO Duta did not threaten to arrest any civilians. He did not threaten any individual with pepper-spray nor did he push any civilians to the ground. PO Duta mentioned that he did not observe any officer push any individuals and he did not recall if any officers had any physical contact with any civilians. In addition, PO Duta did not see any interactions with police officers and civilians beside the time the crowd was instructed to leave the area.) Approximately five minutes after their arrival, PO Duta and PO Murnane left the scene to transport the dirt bike to the precinct.

PO Duta did not recall speaking to any civilians once he was at the stationhouse.

Sprint Print-Out

On June 29, 2007, at 8:00pm, the authorized tracer sergeant radioed that he had a “crime arrest.” At 8:01pm, the tracer sergeant called for an additional unit.

Roll Call

The roll call indicates that on June 29, 2007, Sergeant Mohammed Karimzada and PO Diery Louis from the 75th Precinct were assigned to “Tracer Auto” in a marked vehicle (number 1820).

The roll call also indicated that PO Florin Duta from the 75th Precinct worked with PO Robert Murnane on June 29, 2007. The officers were assigned to Sector D in a marked vehicle (number 2385).

Command Log

The command log indicates that PO Louis arrested § 87(2)(b) § 87(2)(a) 160.50. The officer also arrested § 87(2)(b) § 87(2)(b)

CCRB Histories

PO Diery Louis, a two year veteran of the NYPD has had no substantiated CCRB allegations. Sergeant Mohammed Karimzada, a fourteen year veteran of the NYPD, has had no substantiated CCRB allegations. § 87(2)(b) has not filed any prior complaints with the CCRB.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Conclusions and Recommendations

Officer Identification

All witnesses agree that Sergeant Karimzada had a physical interaction with § 87(2)(b) and PO Louis threatened to pepper-spray § 87(2)(b) obtained the sergeant’s name and the officers’ descriptions matched the descriptions provided by the victims and witnesses in this case. § 87(2)(g)

§ 87(2)(b) alleged that she, § 87(2)(b) and § 87(2)(b) went to the precinct to file a complaint against Sergeant Karimzada. § 87(2)(b) stated that once at the precinct, § 87(2)(b) was yelling at the officers that she wanted to file a complaint. The officers informed § 87(2)(b) that she would have to wait. § 87(2)(b) asked the sergeant to speak to a higher ranking officer. § 87(2)(g)

§ 87(2)(g)

She testified that she told Sergeant Karimzada that she did not want to speak to him but to a higher ranking officer. She also told PO Louis that she wanted to speak to an individual in a higher position. PO Louis testified that he instructed § 87(2)(b) to speak to the desk officer. § 87(2)(b) also acknowledges that the officers instructed her to calm down and to wait. § 87(2)(b) testified that when he arrived at the precinct § 87(2)(b) told him that she wanted to file a complaint and he instructed her to ask to speak to a lieutenant.

According to Sergeant Karimzada, § 87(2)(b) did not tell him that she wanted to file a complaint. The sergeant testified that he thoroughly explained to § 87(2)(b) that § 87(2)(b) behavior at the scene was illegal and that she could have been placed under arrest for obstructing governmental administration. Both officers denied instructing § 87(2)(b) or her family to leave the precinct. § 87(2)(g)

Undisputed Facts

It is undisputed that PO Louis arrested § 87(2)(b) § 87(2)(a) 160.50 and § 87(2)(b) for § 87(2)(b). It is also undisputed that Sergeant Karimzada called for assistance at some point during the arrest and that PO Louis threatened § 87(2)(b) with pepper-spray.

Facts in Dispute

§ 87(2)(g)

Assessment of Evidence

Sergeant Karimzada and PO Louis arrested § 87(2)(b) at a schoolyard. After the arrest was made, the officers were confronted by § 87(2)(b)'s brother, § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b), and approximately 20 other individuals. Based on all accounts, § 87(2)(b) became irate and yelled and cursed at the officers. At that point, Sergeant Karimzada and PO Louis testified that § 87(2)(b) approached them and his brother and attempted to free him from their custody. Even though § 87(2)(b) did not state that § 87(2)(b) attempted to free his brother from police custody, she acknowledged that he approached them and was standing approximately two feet away from them and was "hysterical." The officers then attempted to place him under arrest.

§ 87(2)(b) admitted that she did grab § 87(2)(b) as the officers were placing him under arrest. § 87(2)(g)

It is at this point that § 87(2)(b) alleged that Sergeant Karimzada made a fist and used his forearm to push § 87(2)(b) on her shoulder. § 87(2)(b) testified that the sergeant pushed her when he touched her shoulder as well. § 87(2)(b) § 87(2)(g) testified that the sergeant swung his arm and pushed § 87(2)(b) on her upper chest area. Based on his memo book, Sergeant Karimzada wrote that he did push her though he did not specify this action in his CCRB interview. § 87(2)(g)

After the push, the sergeant allegedly kicked § 87(2)(b) on the right side of her stomach with his foot. § 87(2)(g)

§ 87(2)(b) also stated that the sergeant kicked her on the stomach. All three women testified that § 87(2)(b) had scratch marks on her stomach as a result. None of the women stated that § 87(2)(b) went to the doctor or the hospital and none brought any evidence of the scratches. Sergeant Karimzada and PO Louis did not recall § 87(2)(b) being on the ground. § 87(2)(g)

As this was taking place, a crowd of at least 50 individuals were at the location surrounding the officers. Even though, § 87(2)(b), § 87(2)(b), and § 87(2)(b) stated that the crowd did not approach the

officers, Sergeant Karimzada and PO Louis testified that they did. Sergeant Karimzada stated that he placed a call for assistance when he feared for their safety. § 87(2)(g). PO Duta, who responded to scene after the call was made, testified that once he arrived at the location he observed a crowd of approximately 30 people, yelling, cursing at, and surrounding the officers. PO Louis testified that since he felt unsafe with the crowd he admitted that he took out his pepper-spray and informed the crowd, including § 87(2)(b) and § 87(2)(b) that if they did not move back he would use it. After the officer threatened the crowd with the spray, additional units arrived at the scene and helped to move the crowd back.

§ 87(2)(b) alleged that Sergeant Karimzada threatened to place him under arrest while he was in the precinct. However, he admitted that once his mother told him about the incident regarding § 87(2)(b) and Sergeant Karimzada he got upset and raised his voice. § 87(2)(b) stated that § 87(2)(b) was arguing with the officers right before they threatened to arrest him. § 87(2)(b) stated that § 87(2)(b) was upset and interrupted Sergeant Karimzada and PO Louis while they were speaking to § 87(2)(b). According to her, both officers informed § 87(2)(b) that they were going to place him under arrest. § 87(2)(b) while § 87(2)(b) made no mention about the threat of arrest. Both officers denied speaking to § 87(2)(b) and did not recall threatening to arrest him. § 87(2)(g)

Allegation A: Sergeant Mohammed Karimzada used physical force against § 87(2)(b) § 87(2)(b)

§ 87(2)(g)

Allegation B: PO Diery Louis threatened § 87(2)(b) with pepper-spray.

According to the officers' statements, a crowd of approximately 50 individuals, including § 87(2)(b) were surrounding the officers as they were placing § 87(2)(b) under arrest. § 87(2)(g)

According to NYPD Patrol Guide Procedure 212-95, an officer can "aim and discharge pepper-spray into a subject's eyes for maximum effectiveness, when the uniformed member of service reasonably believes that it is necessary to protect self, or another from unlawful use of force."

§ 87(2)(g)

Allegation C: Sergeant Mohammed Karimzada threatened to arrest § 87(2)(b)

§ 87(2)(g)

Investigator:
Jacqueline Asencio

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: